

24PSCV04335 24PSCV04335

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-07

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C07%2F07%2F2026

Source SHA-256: 8a37b0c434adbcfb03ba10861889d095c9f772ef2fecc4b97858db0a7ac891a0

Case Number: 24PSCV04335 Hearing Date: July 7, 2026 Dept: H

Samaniego v. Hunley, Case No. 24PSCV04335

ORDER ON

MOTIONS TO COMPEL

1. Defendant Roy Hunley's unopposed Motion

Compelling Plaintiff Erik Samaniego to Respond to Defendant's Form Interrogatories, Set No. 1 and Special Interrogatories[, Set No. 1] is GRANTED. Plaintiff is ordered to provide verified responses, without objections, to Defendant's Form and Special Interrogatories, Sets No. 1, within 20 days from the date of the notice of ruling. Sanctions are awarded in the reduced amount of \$240.00 and are payable within 20 days from the date of the notice of ruling.

2. Defendant Roy Hunley's unopposed Motion

Compelling Plaintiff Erik Samaniego to Respond to Defendant's Demand for Inspection and Production of Documents and Tangible Things, Set No. 1 GRANTED. Plaintiff is ordered to provide verified responses, without objections, to Defendant's Demand for Production and Inspection of Documents and Things, Set No. 1, within 20 days from the date of the notice of ruling. Sanctions are awarded in the reduced amount of \$240.00 and are payable within 20 days from the date of the notice of ruling.

Background

Plaintiff

Erik Samaniego ("Plaintiff") alleges that he sustained injuries and damages in a December 13, 2022 motor vehicle accident.

On

December 12, 2024, Plaintiff filed a complaint, asserting causes of action against Roy Hunley ("Defendant") and Does 1-100 for: (1) Negligence, (2) Negligence Per Se, and (3) Vicarious Liability.

A

Post-Mediation Status Conference/Case Management Conference is set for July 7, 2026.

1.

Motion to Compel Re: Form and Special Interrogatories, Sets No. 1

Legal

Standard

A response to interrogatories is due within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) "If a party to whom interrogatories are directed fails to serve a timely response, . . . [t]he party propounding the interrogatories may move for an order compelling response to the interrogatories." (Code Civ. Proc., § 2030.290, subd. (b).)

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust . . ." (Code Civ. Proc., § 2030.290, subd. (c).)

Discussion

Defendant

moves the Court for an order compelling Plaintiff to provide responses to Defendant's Form and Special Interrogatories, Sets No. 1. Defendant also seeks sanctions against Plaintiff in the amount of \$810.00.

Defendant's

counsel Kim Haycraft ("Haycraft") represents, and/or the accompanying exhibits reflect, as follows:

On

October 23, 2025, Defendant served the subject discovery. (Haycraft Decl., ¶ 2, Exh. A.) On December 1, 2025, Haycraft sent a letter to Plaintiff's counsel Andy Basseri, advising him that responses to the subject discovery were past due and requesting that verified responses be provided no later than December 11, 2025. (Id., ¶ 3, Exh. B.) No responses have been received, nor has Plaintiff's counsel requested an extension. (Id., ¶ 4.)

The unopposed motion is granted. Plaintiff is ordered to provide verified responses, without objections, to Defendant's Form and Special Interrogatories, Sets No. 1, within 20 days from the date of the notice of ruling.

Sanctions

Defendant seeks

sanctions against Plaintiff in the amount of \$810.00 [calculated as follows: 2 hours preparing motion at \$180.00, plus 2 hours attending hearing, plus \$90.00 motion filing fee].

Sanctions

are awarded in the reduced amount of \$240.00 (i.e., 1 hour at \$180.00/hour, plus \$60.00 filing fee), payable within 20 days from the date of the notice of ruling.

2.

Motion to Compel Re: Demand for Production and Inspection of Documents and Things

Legal

Standard

A

response to a request for production of documents is due within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) "If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, . . . [t]he party making the demand may move for an order compelling response to the demand." (Code Civ. Proc., § 2031.300, subd. (b).)

"[T]he

court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).)

Discussion

Defendant

moves the Court for an order compelling Plaintiff to provide responses to Defendant's Demand for Production and Inspection of Documents and Things, Set No. 1. Defendant also seeks sanctions against Plaintiff in the amount of \$810.00.

See

synopsis of Motion #1.

The unopposed motion is granted. Plaintiff is ordered to provide verified responses, without objections, to Defendant's Demand for Production and Inspection of Documents and Things, Set No. 1, within 20 days from the date of the notice of ruling.

Sanctions

Defendant seeks

sanctions against Plaintiff in the amount of \$810.00 [calculated as follows: 2 hours preparing motion at \$180.00, plus 2 hours attending hearing, plus \$90.00 motion filing fee].

Sanctions

are awarded in the reduced amount of \$240.00 (i.e., 1 hour at \$180.00/hour, plus \$60.00 filing fee), payable within 20 days from the date of the notice of ruling.